

SENATE BILL 938

By Rose

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 50, Part 8, relative to leave for state
employees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-50-813(a), is amended by deleting the subsection and substituting:

(a)

(1) In addition to leave granted under §§ 8-50-801, 8-50-802, and 8-50-806, an eligible employee must be granted absence from work with pay for a period of time equal to six (6) workweeks because of the birth of the employee's child, because of the placement of a child with the employee for adoption, or because the employee becomes the foster parent of a minor child, and upon the employee giving thirty-days' notice to the appropriate appointing authority. If the eligible employee learns of the birth, adoption, or foster placement less than thirty (30) days in advance, the employee shall give the notice as soon as reasonably possible. For the purpose of calculating service anniversary dates, this absence from work is considered full-time employment.

(2) An employee who becomes the foster parent of a minor child must not continue to utilize leave granted under this subsection (a) once the minor child is no longer placed in the foster parent's home or custody.

SECTION 2. Tennessee Code Annotated, Section 8-50-813, is amended by deleting subsections (d) and (e) and substituting:

(d) An eligible employee must not be granted more than six (6) workweeks of paid leave under subsection (a) during a twelve-month period, but the workweeks do not need to be taken consecutively. An eligible employee may receive no more than six (6) workweeks of paid leave during a twelve-month period, even if there is more than one (1) qualifying birth, adoption, or foster placement under subsection (a). If an eligible employee uses only a fraction of the leave granted under subsection (a), then the eligible employee may use the remaining balance of leave for any qualifying birth, adoption, or foster placement that occurs within the same twelve-month period. Leave granted pursuant to this section must be used within twelve (12) months of the qualifying birth, adoption, or initial foster placement.

(e) As used in this section:

(1) "Eligible employee" means:

(A) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in §§ 8-30-102(a), 8-30-102(b)(2), 8-30-102(b)(6)-(7), and 8-30-102(b)(10)-(13); or

(B) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in § 8-30-102(b)(9), except for an employee of any administrative board or commission that is attached to an entity described in § 8-30-102(b)(1) or § 8-30-102(b)(3)-(5); and

(2) "Foster parent" has the same meaning as defined in § 37-2-414

(a)(2).

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.